

Dhirendra Kumar v. State of U.P.

Allahabad High Court · Division Bench · 23 February 2023 · WRIT - C No. - 42114 of 2009 · **Writ dismissed for want of prosecution.**

HEADNOTE

Tube-well writ over recovery of alleged permanent-disconnection arrears. On 3 September 2009 a Division Bench (Sunil Ambwani and Ran Vijai Singh, JJ.) stayed recovery of Rs 1,35,529 and directed the respondents to consider a fresh-connection application without insisting on that deposit, observing prima facie that permanent disconnection should have followed within a reasonable time of the 1991 non-use report. On 23 February 2023 none appeared even in the revised call; the petition was dismissed for want of prosecution, with no merits decision on the bill or the Supply Code.

FACTUAL SUMMARY

The petitioners' father took a tube-well connection in 1978. Boring failed in 1988. An Assistant Engineer reported on 6 October 1991 that the boring had failed and electricity was not being used; the connection was disconnected. Restoration sought on 3 August 1993 was not granted. A recovery notice for Rs 1,35,529 later treated a temporary disconnection as made on 30 January 2004 and permanent disconnection on 9 September 2008. Counsel said supply had not been used after 1991 and that the 2005 Supply Code did not apply.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal for want of prosecution after interlocutory PD-arrears stay

HOLDING

The writ was dismissed for want of prosecution when none appeared for the petitioners even in the revised call. An earlier interlocutory order (3.9.2009) had stayed recovery of Rs 1,35,529 towards permanent disconnection and directed the respondents to consider a fresh-connection application, with fees and charges, without insisting on that deposit, on a prima facie view that PD should have been directed within a reasonable time of the 1991 finding of non-use. Those directions were not a final merits grant; the electricity dispute was left undecided. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER U.P. ELECTRICITY SUPPLY CODE, 2005 APPLIED TO A CONNECTION DISCONNECTED AFTER THE 1991 NON-USE REPORT

¶ 3

NOT DECIDED — RECOVERABILITY OF THE RS 1,35,529 PD ARREARS AND ENTITLEMENT TO A FRESH CONNECTION WITHOUT DEPOSITING THAT AMOUNT

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